

Personal appearance and appearances via ZOOM are available.

UPDATED Probate Calendar for Friday, September 11, 2026

9:00 a.m. in Department Paso 2, with Judge Michael C. Kelley (by Michele L. Rowe, Judge Pro Tem) presiding

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR/ DISMISSED/ TERMINATED or CONTINUED:</u>				
1	14PR-0357	In Re: Timothy Goeckner Special Needs Trust	Petition Filed 3/13/2026 - Sixth Account and Report of Trustee	<i>CONTINUED LIST: The matter is continued to November 13, 2026 at 9:00 a.m. in P2. All additional information is needed by October 2, 2026. The following is noted:</i> <i><u>Sale of the Trust's Owned Home.</u> Clarification is needed on the sale of the Trust-owned home. Neither the prior Court orders nor the Trust appear to provide powers to the Trustee to <u>sell the home</u> without Court approval. The Court, had not required a bond for the value of the home, due to that limitation. It is unclear how the real property was sold in July of 2025, just outside this account period, without any Court involvement. Explanation is required with citation to specific Court orders approving the sale. If no order exists, Petitioner will need to provide for a plan to obtain approval, so the Court can determine if any objections exist to the sale and price. This account will not be able to be approved until potential liability is assessed.</i>

				2. <u>Original facility statements</u> are now due, as the conservatee/ trust beneficiary now lives in assisted living. See Probate Code section 2620, applicable through California Rules of Court, rule 7.903. 3. <u>Accounting issues.</u> The following items need additional clarification as noted. a. What expenses are expected to cease now that the conservatee has moved into a facility, in what appears to be Boise, Idaho? i. All the real property expenses, it is understood, will cease fairly quickly in the 7th Account, which allegedly will report the sale of the real property. ii. Is the Caregiver expense/Team Member ceasing? If not, why is this needed when the conservatee is living in a facility with various retirement and care levels based on the Petition. iii. Vehicle Expenses: As the Trust beneficiary now resides in a facility, the need for the vehicle is unclear, especially based on the costs associated. It is unclear if the vehicle is even in this state any longer. An explanation is needed on the plans for the vehicle and
--	--	--	--	---

				<i>related expenses. Are there alternatives offered through the care facility for travel to medical and other trips?</i> iv. <i>True Link Card. Is the True Link card, at the current rate, needed? It seems that most living expenses are either tied into the facility payment or paid for by the Trust. It also appears many of the things being paid for by the True Link card are not of the nature of what was presented to the Court. For example, there are gas charges, home maintenance, and auto expenses being covered. A reduction in the monthly allowance is recommended, at a minimum.</i> b. <i>Moving expenses reimbursed to Peggy Keller of \$801.54. Additional explanation is needed with receipts.</i> c. <i>Home maintenance expenses to Peggy Kellery \$830.05. Additional explanation is needed with receipts.</i> d. <i>Assets on Hand- During this Account period, funds were distributed in ways that should be tracked going forward in some manner.</i> i. <i>Normally, a burial plan is included as an asset on hand</i>
--	--	--	--	---

				<i>at the end of the account and tracked in future accounts. An Amendment is needed.</i> <i>ii. The Medicare Set Aside Account and its current ongoing value will need to be tracked as part of the account in some way. The Trust has pre-paid \$22,743 in assets, based on the description provided, to pay off certain medical expenses that would normally be paid for by the Trust. The Court needs information on this by way of some ongoing schedule inclusion.</i> <i>e. Other: Explanation is needed on the additional \$3,485.15 paid to the True Link card, beyond the \$400.00 paid, for the month of September 2023.</i> <i>4. <u>Bond</u>. Total bond is currently \$440,000. The Petition notes the real property of the Trust was sold, so it appears excluding the value of the property is no longer appropriate. A new calculation is needed.</i> <i>5. <u>Fees</u>. As noted above, it is unclear at this time how the real property of the Trust was sold without seeking Court approval. It currently appears the Trustee did not have the power to sell the real property under the trust terms. As such, the items below are subject to change once that issue is resolved,</i>
--	--	--	--	---

				<i>to plan for any damages that may have occurred.</i> <i>a. Trustee/ Fiduciary fees. The hourly logs are appreciated. It is noted that this Court would normally not allow some of the hourly rates noted in the materials for the services provided. It is also noted that there were numerous other professionals paid to work on the accounting and assist in the management of this Trust, in terms of accountants, the TEAM member, and investment advisors described. Due to this, a total fee of \$12,415.34 is recommended. This results in a \$2,000 reduction.</i> <i>b. Attorney fees. Attorney fees are recommended as requested. The reductions to fit within the community standard are noted and appreciated.</i> <i>6. 7th Account and Report is due by October 1, 2027, for the period of July 1, 2025 to June 30, 2027.</i>
2	16PR-0215	Conservatorship of: Jan Mackie-Sidle	Petition Filed 3/11/2026 - Fifth Account	CONTINUED LIST: <i>The matter is continued to December 11, 2026 at 9:00 a.m. in P2. All additional information is due by October 26, 2026. The following is noted:</i> <i>1. Original Care Facility statements are needed for the Oaks at Nipomo. They were not located in Exhibit A or B. It is understood the conservatee no longer lives</i>